

25STCV08846 25STCV08846

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-09-09

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Case Number: 25STCV08846 Hearing Date: September 9, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September

9, 2026 TRIAL

DATE: October 5, 2026

CASE: Khalid Elazouzi v. General Motors LLC

CASE NO.: 25STCV08846

MOTION

TO STAY PROCEEDINGS

MOVING PARTY: Plaintiff

Khalid Elazouzi

RESPONDING PARTY: Defendant

General Motors, LLC

I. INTRODUCTION

Plaintiff, Khalid Elazouzi, bring this lemon law action against Defendant, General Motors LLC ("GM"), arising from the purchase of a used vehicle. Plaintiff alleges causes of action for (1) Violation of subdivision (d) of Civil Code Section 1793.2, (2) Violation of subdivision (b) of Civil Code Section 1793.2, (3) Violation of subdivision (a)(3) of Civil Code

Section 1793.2, (4) Breach of the Implied Warranty of Merchantability, and (5) Fraudulent Inducement - Concealment.

On November 7, 2025, GM filed a motion for judgment on the pleadings.

On March 24, 2026, the court granted the motion and granted leave to amend as to the Song-Beverly causes of action only.

On May 26, 2026, Plaintiff filed the First Amended Complaint ("FAC").

On June 5, 2026, GM filed its Answer to the FAC.

On June 23, 2026, Plaintiff filed a motion for stay of proceedings pending the Court of Appeal's decision in *Price et al. v. General Motors, LLC*, No. B353231 (Cal. Ct. App. pending).

On August 27, 2026, Defendant filed an opposition.

At the time of this writing, no reply had been filed.

II. LEGAL STANDARD

A court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 141.) The power to stay proceedings is incidental to the power inherent in every court to control the disposition of the cause on its docket with the economy of time and effort for itself, for counsel, and for litigants. (*Id.*) "Trial courts generally have inherent power to stay proceedings in the interest of justice and to promote judicial efficiency." (*Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489.)

III. DISCUSSION

Plaintiff contends the court should exercise its inherent authority to issue a stay to allow resolution of the appeal in Price v. General Motors pending in the Second District Court of Appeal because it will determine a novel issue: whether GM's post-filing election into the Song-Beverly Act's new procedural regime retroactively time-bars a complaint.

GM argues a stay is not warranted because: (1) the motion does not comply with the CRC; and (2) the balance of equities does not favor a stay.

Here, a discretionary stay is not warranted. First, Plaintiff seeks a stay for an unknown period of time due to an appeal pending in an adjacent matter. This prejudices GM who is still litigating the Song-Beverly claims. Second, Plaintiff is free to file a motion for reconsideration after the Court of Appeal rules, as needed. The balance of equities does not favor a stay. Therefore, the court is not inclined to exercise its discretion to issue a stay.

IV. CONCLUSION

The motion to stay proceedings is DENIED.

Moving party is ordered to give notice, unless waived.

Dated: September 9,
2026

Brock T. Hammond

Judge of the Superior Court